

Michigan Supreme Court rules sex offender registry changes cannot be applied retroactively

The court decision

On Wednesday, September 9, the Michigan State Supreme Court ruled that amendments to the state's Sex Offender Registration Act (SORA) cannot be used to retroactively prolong registration requirements for anyone whose offense was before July 1, 2011. People whose crimes were before July 1, 2011 have been removed from the system, while the other registered offenders are still required to comply with registry rules. This action caused the Michigan State Police to remove more than 20,000 people from the sex offender registry, slashing the list of what was approximately 43,000 people by almost half.

The court's decision arose after recognition of the fact that strict reporting requirements, tier classifications, and extended lifetime registration requirements previously passed in the SORA summed up to criminals receiving an illegal, retroactive punishment. This is known legally as an *ex post facto* law, which is illegal under constitutional law—that is, the state cannot lengthen or intensify a person's punishment once the sentence has already been read.

History of the event

Wednesday's Supreme Court decision reverts a change made in 2011 that controversially extended the sentencing of one Eddie Lee Smith, who pleaded no contest to two counts of criminal sexual conduct and was sentenced to 15–30 years in prison. But in 2011, amendments made to the SORA placed offenders into tiers, thereby placing Smith into Tier III—which required lifetime registration. His lawyers, as well as other critics, argue that this amounted to unconstitutional punishment after the fact. Years later, that controversy has led to a new ruling.

Professional opinions moving forward

There are several takes on this ruling. Miriam Aukerman, a member of the American Civil Liberties Union (ACLU) explains,

What the courts have said, you can't retroactively change the consequences of a crime. In 2011, the Legislature really changed the way the registry worked. It expanded registration tremendously, lengthened the terms [on the registry]. Before that, the registration terms were shorter. The vast majority of people today are on the registry for life and what's required of offenders is incredibly punitive.

However, according to the case's prosecutor, Chris Becker—who is against the court's ruling— it is “concerning” to “just broadly take off 20,000 or 30,000 people without looking at the specific facts of the case, just because there's a change in law.” Becker “can't imagine there's not people who are very dangerous individuals that are on that registry that are now taken off with just one broad stroke. They're really not taking an individualized look at these people,” he says, “It's just, ‘You're off of it,’ but not looking at the facts.”

Still, concern over constitutional protections remains. “It's really a pretty basic, fundamental principle of law that... you can't retroactively change the rules of the game,” continues Auckerman, “And what the Legislature did was retroactively impose a new punitive law on those people.”

It is important to note the ruling does not overturn anyone's conviction. It only affects who is required to remain on the public registry.